

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

LAQUENTTA WALLACE,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT OFFICER JORDAN, NEW
YORK CITY POLICE DEPARTMENT OFFICER
GREENE, and NEW YORK CITY POLICE
DEPARTMENT OFFICERS JOHN AND JANE
DOES 1-15,

Defendants.

Index No. _____

SUMMONS

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon Plaintiff's attorney, at his address stated below, an Answer to the attached Complaint.

If this Summons was personally served upon you in the State of New York, the Answer must be served within 20 days after such service of the Summons, excluding the date of service.

If the Summons was not personally delivered to you within the State of New York, the Answer must be served within 30 days after service of the Summons is complete as provided by law.

If you do not serve an Answer to the attached Complaint within the applicable time limitation, a judgment may be entered against you, by Plaintiff, for the relief demanded in the Complaint, without further notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for the County of Queens. This action is brought in Queens County because that is where the claim arose.

Dated: May 16, 2024
New York, New York

Respectfully submitted,



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LAQUENTTA WALLACE,

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**VERIFIED COMPLAINT AND
DEMAND FOR JURY TRIAL**

Plaintiff Laquentta Wallace, by and through her attorneys at Beldock Levine & Hoffman, LLP, alleges as follows:

PRELIMINARY STATEMENT

1. Ms. Wallace brings this civil rights action under the Fourth and Fourteenth Amendments to the United States Constitution, pursuant to 42 U.S.C. § 1983, as well as under the Constitution and laws of the State of New York, seeking to recover for injuries caused by Defendants' violations of her rights.

2. Ms. Wallace rights were violated when New York City Police Department ("NYPD") Officers ("P.O.s") unlawfully entered her home, and assaulted and battered her, causing her ongoing physical, emotional, and economic injuries.

3. Ms. Wallace now seeks redress for the substantial injuries she suffered, including but not limited to: (i) compensatory damages for her physical injuries, psychological and emotional distress, and financial loss caused by the illegal actions of Defendants; (ii) punitive damages to deter such intentional or reckless deviations from well-settled constitutional law; and

(iii) such other and further relief, including attorneys' fees and costs, as this Court deems just and equitable.

JURISDICTION AND VENUE

4. Venue is properly laid in the Supreme Court of the State of New York, County of Queens, because Ms. Wallace resides in Queens County, the incident took place in Queens County, and Defendants regularly and substantially conduct business in Queens County. C.P.L.R. § 503(a)–(b).

5. Ms. Wallace has satisfied all of the prerequisites for filing her state-law claims.

PARTIES

6. Ms. Wallace is, and was at all relevant times, a Black woman and a resident of Queens, New York.

7. Defendant the City of New York ("City") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, and does maintain the NYPD, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers because said risks attach to the public consumers of the services provided by the NYPD.

8. Defendants P.O. Jordan, Badge Number 11079, Greene, and John and Jane Does 1–15 are, and were at all relevant times, officers, employees, and agents of the NYPD.

9. In this Complaint, Defendants P.O. Jordan, Greene, and Does 1–15, are collectively referred to as the "Individual Defendants."

10. The Individual Defendants are being sued in their individual capacities.

11. The true names, ranks, and shield numbers of the Individual Defendants are not

currently known to Ms. Wallace.¹ However, they are employees or agents of the NYPD. Accordingly, upon their request, they are entitled to representation in this action by the New York City Law Department (“Law Department”) pursuant to New York State General Municipal Law § 50-k. The Law Department is thus put on notice that (a) Ms. Wallace intends to name those individuals as Defendants in an amended pleading once their true identities becomes known to Ms. Wallace and (b) the Law Department should immediately begin preparing their defenses in the action.

12. At all relevant times, the Individual Defendants acted under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD, with the power and authority vested in them as officers, agents, and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees, and agents of the NYPD.

13. The Individual Defendants’ acts were carried out intentionally, recklessly, with malice, and in gross disregard for Ms. Wallace rights.

14. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described in this Complaint and lending their physical presence and support, and the authority of their offices, to one another.

FACTS

15. On February 19, 2023, Ms. Wallace was getting ready for work in her apartment at 109-25 Merrick Boulevard, Apt. 4, Jamaica, NY 11433.

16. At approximately 11:30 a.m., someone knocked on the door to her apartment.

¹ By identifying some Defendants as “John Does” and “Jane Does,” Ms. Wallace is making no representations as to the gender of those Defendants.

17. Ms. Wallace looked through the peep hole in her door and saw two uniformed police officers—Officers Jordan and Greene.

18. Ms. Wallace asked who was there and the officers said, in sum and substance, “Police. Open up,” and told Ms. Wallace that they had received a call that someone had a gun to her head.

19. Ms. Wallace said that she was fine and no one was in the apartment with her.

20. Nevertheless, the police said, in sum and substance, “Open up.”

21. The officers reiterated that they had received a call that there was someone in the apartment with a gun to her head.

22. Ms. Wallace reiterated that she was by herself, and opened her door wide so that the officers could see the whole apartment.

23. At that point, P.O.s 1–15 gathered behind P.O.s Jordan and Greene.

24. Ms. Wallace told the officers that they could not come in.

25. Nevertheless, the officers said, in sum and substance, “We are coming in your fucking house,” and—without consent, probable cause, or any exigency or emergency—entered Ms. Wallace’s apartment.

26. Officers Jordan and Greene handcuffed Ms. Wallace and put her on her couch.

27. Officer Greene choked Ms. Wallace, wrapping both of her hands around Ms. Wallace’s throat for five to six seconds.

28. Ms. Wallace started to lose consciousness.

29. Officer Jordan locked Ms. Wallace’s leg between his two legs.

30. The officers searched Ms. Wallace house, opening and closing doors throughout the apartment.

31. Ms. Wallace's bedroom door was locked.
32. The officers demanded Ms. Wallace give them the key.
33. She refused.
34. The officers said they would be there all day and someone would come to kick the door in.
35. Ms. Wallace still refused to give them the key.
36. Officer Jordan then removed Ms. Wallace's keys from inside of her briefs and handed them to another officer.
37. The officers—without consent, probable cause, or any exigency or emergency—entered Ms. Wallace's bedroom.
38. After the officers searched her room, the officers removed her handcuffs, gave her her keys, and left.
39. Throughout the episode, one tall, white, bald officer with an egg-shaped head wearing a white shirt appeared to be in charge.
40. Upon information and belief, the NYPD has a policy or custom of failing to train officers on the emergency doctrine.
41. Upon information and belief, the NYPD has a policy or custom of failing to train officers on how to procure a warrant.
42. Upon information and belief, the NYPD has a policy or custom of entering the homes of Black people without justification compared to the homes of similarly situated white people.
43. As a result of the incident, Ms. Wallace suffered numerous injuries, including extensor carpi ulnaris tendinosis in both wrists, a superimposed partial longitudinal split tear at the

level of her ulnar groove in her left wrist, and ganglion cysts in her right wrist.

44. Ms. Wallace has ongoing pain and difficulty completing simply tasks because of her wrist pain.

45. She also suffers from anxiety, fearing that the officers may return and violate her rights again. As a result, she has been treating with a counselor.

COUNT ONE

**42 U.S.C. § 1983, United States Constitution, Amendment IV
Unlawful Seizure**

Against the Individual Defendants

46. By the acts and omissions described above, the Individual Defendants deprived Ms. Wallace of her clearly established right to be free from an unlawful seizure under the United States Constitution.

47. The Individual Defendants' violations of that right caused Ms. Wallace to suffer physical, mental, emotional, and economic damages.

COUNT TWO

**42 U.S.C. § 1983, United States Constitution, Amendment IV
Unlawful Search**

Against the Individual Defendants

48. By the acts and omissions described above, the Individual Defendants deprived Ms. Wallace of her clearly established right to be free from an unlawful searches under the United States Constitution.

49. The Individual Defendants' violations of that right caused Ms. Wallace to suffer physical, mental, emotional, and economic damages.

COUNT THREE**42 U.S.C. § 1983, United States Constitution, Amendment IV
Excessive Force***Against the Individual Defendants*

50. By the acts and omissions described above, the Individual Defendants deprived Ms. Wallace of her clearly established right not to be subjected to excessive force under the United States Constitution.

51. The Individual Defendants' violations of that right caused Ms. Wallace to suffer physical, mental, emotional, and economic damages.

COUNT FOUR**42 U.S.C. § 1983, United States Constitution, Amendment XIV
Equal Protection***Against the Individual Defendants*

52. By the acts and omissions described above, the Individual Defendants deprived Ms. Wallace of her clearly established right to equal protection under the law, pursuant to the United States Constitution.

53. The Individual Defendants' violations of that right caused Ms. Wallace to suffer physical, mental, emotional, and economic damages.

COUNT FIVE**42 U.S.C. §1983, *Monell* Liability for Constitutional Violations***Against the City*

54. The Individual Defendants violations of Ms. Wallace's constitutional rights were a direct result of the City's unconstitutional customs or policies.

55. The City is thus liable for all of Ms. Wallace's injuries that were caused by the Individual Defendant's violations of her constitutional rights.

COUNT SIX**New York State Constitution, Article I, Section 12****Excessive Force***Against All Defendants*

56. By the acts and omissions described above, the Individual Defendants deprived Ms. Wallace clearly established right not to be subjected to excessive force under the Constitution and laws of the State of New York.

57. The Individual Defendants' violations of that right caused Ms. Wallace to suffer physical, mental, emotional, and economic damages.

COUNT SEVEN**New York State Constitution, Article I, Section 12****False Arrest***Against All Defendants*

58. By the acts and omissions described above, the Individual Defendants deprived Ms. Wallace of her clearly established right not to be free from false arrest under the Constitution and laws of the State of New York.

59. The Individual Defendants' violations of that right caused Ms. Wallace to suffer physical, mental, emotional, and economic damages.

COUNT EIGHT**New York State Constitution and Laws****False Imprisonment***Against All Defendants*

60. By the acts and omissions described above, Defendants did falsely imprison Ms. Wallace. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Ms. Wallace and violated her statutory and common law rights as guaranteed by the Constitution and laws of the State of New York.

61. The Individual Defendants' violations of that right caused Ms. Wallace to suffer physical, mental, emotional, and economic damages.

COUNT NINE**New York State Constitution, Article I, Section 11****Equal Protection***Against All Defendants*

62. By the acts and omissions described above, the Individual Defendants deprived Ms. Wallace of her clearly established right to equal protection under law, pursuant to the Constitution and laws of the State of New York.

63. The Individual Defendants' violations of that right caused Ms. Wallace to suffer physical, mental, emotional, and economic damages.

COUNT TEN**New York State Constitution and Laws****Intentional and Negligent Infliction of Emotional Distress***Against All Defendants*

64. By the acts and omissions described above, Defendants engaged in extreme and outrageous conduct, which intentionally or negligently caused Ms. Wallace to suffer severe emotional distress, causing him physical, mental, emotional, and economic damages.

65. Defendants thus violated Ms. Wallace's statutory and common law rights as guaranteed by the Constitution and laws of the State of New York.

COUNT ELEVEN**New York State Constitution and Laws****Negligence***Against All Defendants*

66. By the acts and omissions described above, Defendants, jointly and severally, negligently caused injuries, emotional distress, and damage to Ms. Wallace. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Ms. Wallace and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

67. As a result, Ms. Wallace was deprived of her liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

COUNT TWELVE
NYC Admin. Code §§ 8-801 to 8-807
Against All Defendants

68. By the acts and omissions described above, Defendants deprived Ms. Wallace of her rights to be free from unreasonable searches and seizures under NYC Administrative Code §§ 8-801 to 8-807.

69. Defendants' violations of that right caused Ms. Wallace to suffer physical, mental, emotional, and economic damages.

COUNT THIRTEEN
N.Y.C. Admin Code §§ 14-151(c)(i), (ii)
Bias-Based Policing
Against All Defendants

70. By the acts and omissions described above, Defendants initiated law enforcement action against Ms. Wallace that, in part, relied on her actual and/or perceived race and/or housing status as the determinative or motivating factor in entering Ms. Wallace's home and assaulting her, causing her physical, mental, emotional, and economic damages.

COUNT FOURTEEN
Respondeat Superior Liability for State Law Violations
Against Defendant City

71. The Individual Defendants' acts and omissions described above, which caused Ms. Wallace physical, mental, emotional, and economic damages, occurred while the Individual Defendants were acting under color of state law, in and during the course and scope of their duties and functions officers of Defendant City, and while they were acting as agents and employees of the City, clothed with and invoking state power and authority.

72. The City thus liable for Ms. Wallace's injuries under the state common law doctrine of *respondeat superior*.

COUNT FIFTEEN
Negligent Hiring, Screening, Retention, Supervision, and Training
Against Defendant City

73. Defendant City negligently hired, screened, retained, supervised, and trained the Individual Defendants, whose acts and omissions described above caused Ms. Wallace to suffer physical, mental, emotional, and economic damages and violated her statutory and common law rights as guaranteed by the constitution and laws of the State of New York.

JURY DEMAND

74. Ms. Wallace demands a trial by jury in this action on each and every one of her damages claims.

PRAYER FOR RELIEF

Ms. Wallace demands judgment against all Defendants, individually and jointly, and prays for the following relief:

- (a) Compensation for violations of her constitutional rights, pain, suffering, mental anguish, humiliation, lost wages, and other injuries;
- (b) An award of punitive damages against the Individual Defendants;
- (c) Compensation for the attorneys' fees, costs, and disbursements of this action; and
- (d) Any further or different relief the Court may deem just and proper.

Dated: May 16, 2024
New York, New York

Respectfully submitted,



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Attorneys for Plaintiff

ATTORNEY'S VERIFICATION

I, David B. Rankin, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1. I am the attorney of record for Plaintiff.
2. I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, and other pertinent information contained in my files.
3. This verification is made by me because Plaintiff does not reside in the County where I maintain my office.

Dated: May 16, 2024
New York, New York

Respectfully submitted,



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